

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ENGER MIGUEL JAVIER,

Plaintiff,

-against-

THE CITY OF NEW YORK, BRONX COUNTY
DISTRICT ATTORNEY'S OFFICE, ASSISTANT
DISTRICT ATTORNEY JOHN MORABITO,
COMMISSIONER WILLIAM BRATTON IN HIS
OFFICIAL CAPACITY, DETECTIVE INSPECTOR
BRIAN MULLEN IN HIS OFFICIAL CAPACITY
AS THE COMMANDING OFFICER OF THE 44TH
PRECINCT, LIEUTENANT JOSE JACOME,
DETECTIVE CARLOS FAULKNER (Tax # 913693),
And DETECTIVE DAVID RODRIGUEZ
(Shield # 007607)

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
March 11, 2016

Yours, etc.

_____/s/
John Scola
Nwokoro & Scola, Esquires.
Attorneys for the Plaintiff
48 Wall Street, 11th Floor
New York, NY 10005
(212) 785-1060

DEFENDANTS ADDRESS:

Corporation Counsel of the City
Of New York
100 Church Street
New York, NY 10007

Bronx County District Attorney's Office
98 East 161st Street
Bronx, NY 10451

Assistant District Attorney John Morabito
98 East 161st Street
Bronx, NY 10451

Police Commissioner William Bratton
One Police Plaza
New York, NY 10038

Detective Inspector Brian Mullen
2 East 169th Street
Bronx, NY 10452

Lieutenant Jose Jacome
2 East 169th Street
Bronx, NY 10452

Detective Carlos Faulkner
2 East 169th Street
Bronx, NY 10452

Detective David Rodriguez
2 East 169th Street
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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ENGER MIGUEL JAVIER,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, BRONX COUNTY
DISTRICT ATTORNEY'S OFFICE, ASSISTANT
DISTRICT ATTORNEY JOHN MORABITO,
COMMISSIONER WILLIAM BRATTON IN HIS
OFFICIAL CAPACITY, DETECTIVE INSPECTOR
BRIAN MULLEN IN HIS OFFICIAL CAPACITY
AS THE COMMANDING OFFICER OF THE 44TH
PRECINCT, LIEUTENANT JOSE JACOME,
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And DETECTIVE DAVID RODRIGUEZ
(Shield # 007607)

Defendants.

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Plaintiff, ENGER MIGUEL JAVIER, by his attorneys, NWOKORO & SCOLA,
ESQUIRES, respectfully alleges upon information and belief as follows:

1. At all times mentioned, Plaintiff ENGER MIGUEL JAVIER, was a resident of
Bronx County, City and State of New York.
2. At all times mentioned, the CITY OF NEW YORK, was and is a municipal
corporation duly organized and existing by virtue of the laws of the State of
New York.
3. At all times mentioned, the BRONX COUNTY DISTRICT ATTORNEY'S
OFFICE, were and are district attorneys of Bronx County under the control of
the Defendant City of New York, and at all times herein were acting in such
capacity as the agents, servants and employees of the Defendant, THE CITY

OF NEW YORK. In this capacity the Defendant the BRONX COUNTY DISTRICT ATTORNEY'S OFFICE and specifically Defendant ASSISTANT DISTRICT ATTORNEY JOHN MORABITO, in his capacity as an employee of the BRONX COUNTY DISTRICT ATTORNEY'S OFFICE acted with malicious, reckless and willful disregard for the laws of the United States of American and New York by knowingly illegally interrogating, forcing witnesses to bring false accusations against, causing the illegal detention of and maliciously prosecuting Plaintiff Enger Miguel's Javier.

4. On or about February 10, 2016 and within 90 days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant City of New York, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
6. The Plaintiff has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or

the Public Authorities Law and/or no such request was made within the applicable period.

7. Upon information and belief, at all times mentioned, Defendants ASSISTANT DISTRICT ATTORNEY JOHN MORABITO, POLICE COMMISSIONER WILLIAM BRATTON IN HIS OFFICIAL CAPACITY, DETECTIVE INSPECTOR BRIAN MULLEN AS THE COMMANDING OFFICER OF THE 44TH PRECINCT, LEIUTENANT JOSE JACOME, DETECTIVE CARLOS FAULKNER, TAX # 913693, and DETECTIVE DAVID RODRIGUEZ, SHIELD # 007607 were and are employees of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.
8. On or about August 19, 2012, while Plaintiff was lawfully in the vicinity of the parking lot located at 1625 Webster Avenue in the Bronx at a party consisting of over fifty individuals whereat a homicide took place.
9. After the homicide, Mr. Javier was detained by Lieutenant Jose Jacome without probable cause or reasonable suspicion for a stabbing homicide that took place at 1625 Webster Avenue, Bronx, New York.
10. Lieutenant Jose Jacome claimed that Mr. Javier was detained because he was identified by two witnesses as someone who was in the McDonald's parking lot prior to the homicide. However, this statement must be false. Mr. Javier was never in the McDonalds parking lot prior to the homicide and these "so-called" witnesses never appeared again and never identified Mr. Javier in a line up.

11. Plaintiff was transported to the 44th Precinct where he was placed in detention and was interrogated by Detectives Carlos Faulkner and David Rodriguez. For the entire period while he was in the custody of the police, Mr. Javier was not allowed to make a phone call so he can call a lawyer and was refused an attorney by the Detectives.
12. At no time during his arrest or detention by the police was Mr. Javier read his Miranda rights even though he kept asking for a lawyer.
13. During the interrogation, which lasted nearly two days, Mr. Javier was told by the Detectives that they knew him to be responsible for a homicide that occurred at 1625 Webster Avenue. Mr. Javier immediately told the detectives that he was completely innocent of any wrong doing and he along with dozens of others had witnessed the homicide. He even informed the Detectives the identity of the actual killer. Mr. Javier then proceeded to show the detectives pictures via Facebook of the actual murderer. Despite telling the Detectives on August 19, 2012 the identity of the murderer they continued to interrogate him for two days without a lawyer and without reading him his Miranda rights.
14. At the time Mr. Javier was detained, the detectives also detained Jansel Manuel Paula (hereinafter "Paula"). Paula told the detectives that the same person Mr. Javier stated committed the homicide did in fact commit the crime.
15. Despite two separate witnesses stating that the same person committed the murder, the detectives took no action to investigate the actual killer.
16. Instead Detective Carlos Faulkner threatened Paula with 20 years to life in prison and withheld food and water from Paula until he stated that Mr. Javier

committed the homicide. After a day of these threats and starving Paula, he was forced by Detective Carlos Faulkner to falsely accuse Mr. Javier of the crime.

17. On August 19, 2012 detectives placed Mr. Javier in four (4) separate line ups. On one of the lineups a witness stated that Mr. Javier looked familiar but she did not know what from. At no time did this witness identify Mr. Javier as being involved with the homicide. The other three witnesses also failed to identify Mr. Javier. At no time did the witnesses Lieutenant Jose Jacome claimed to have identified Mr. Javier appeared to identify him in a lineup.
18. On the night of the homicide police officers attempted to recover video surveillance of the homicide. The police officers went to several locations on the night of including the McDonald's located at 1625 Webster Avenue, Bronx, NY, Bentley Auto Works located at 1645 Webster Avenue, Bronx, NY and Miguel Auto Parts located at 1647 Webster Avenue, Bronx, NY. The businesses were closed at the time the police officers completed their canvass but returned the following day on August 20, 2012 and recovered videos from Bentley Auto Works and Miguel Auto Parts. This is reflected on the N.Y.P.D. Complaint-Follow Up Informational Report-Canvass which states in reference to Bentley Auto Works and Miguel Auto Parts "the following locations were canvassed and yielded positive results for pertinent video in regards to this case."
19. Detectives only needed to view the video tape to see that Mr. Javier was not part of the group that was chasing the victim prior to his death. Rather, Mr. Javier can be seen with the rest of the crowd, in shock and holding a white cup after the group of individuals chased the victim.

20. Police officers recovered green cargo shorts with a black belt, a white t-shirt and a black t-shirt with blood on them. A lab report dated September 11, 2012 states that these articles of clothing had blood on them and could be sent away for DNA evidence. However, neither the Bronx County District Attorney nor the N.Y.P.D. felt it necessary to do so.
21. Detective Carlos Faulkner arrested Mr. Javier formally on August 20, 2012 for the homicide although there was no positive identification, no blood on any of his clothing, no murder weapon, his staunch denial that he committed the crime and after forcing a witness to say that he committed the crime.
22. Following the arrest, Mr. Javier continued to be illegally interrogated by the Detectives. An Assistant District Attorney also joined the interrogation on August 20, 2012. During these interrogations, Mr. Javier asked the Assistant District Attorney for a phone call and a lawyer. The Assistant District Attorney told Mr. Javier that he was not entitled to a phone call. After Mr. Javier asked for an attorney the Assistant District Attorney turned off the video camera and then proceeded to continue to interrogate Mr. Javier for over an hour. During this illegal interrogation the Assistant District Attorney repeatedly told Mr. Javier that he needed to confess to this murder.
23. On August 22, 2012 the victim's family members brought the detectives photos of who they believed committed the homicide. The photos they gave the detectives were of the same person that Mr. Javier and Paula stated committed the homicide. Again the detectives did nothing to investigate these leads.

24. Plaintiff Enger Miguel Javier was falsely charged with the following crimes all related to the homicide at 1625 Webster Avenue, without reasonable cause or probable suspicion linking him to that crime; Murder in the second degree -P.L. 125.25(); manslaughter in the first degree – P.L. 125.20; gang assault in the first degree P.L. 120.70; and criminal possession of a weapon in the fourth degree – P.L. 265.01 (2).
25. The investigating police officers in this matter, specifically Detectives Carlos Faulkner and David Rodriguez, never attempted to follow up on leads given to them by witnesses of the crime, tested the DNA evidence found at the scene, failed to pursue witnesses of the crime which can be seen clearly on the surveillance videos and forced a witness to falsely accuse Mr. Javier of the crime and closed the homicide investigation in 23 days despite knowing that he was innocent of the crimes in which he was charged.
26. The investigating police officers in this matter, and their superiors, specifically Detectives Carlos Faulkner and David Rodriguez and the commanding officer of the 44th Precinct and the Bronx County District Attorney's Office, knew that there was no evidence in this matter sufficient to charge the Plaintiff with these crimes or to keep him in custody but did so anyway.
27. As a result of the false arrest and false charges made against the Plaintiff, he was incarcerated for 1 year, 11 months and 17 days from August 19, 2012 to August 5, 2014.
28. At that time Mr. Javier was granted bail by the presiding judge. The reasoning for the bail was that after nearly two years the Bronx County District Attorney's

office and the N.Y.P.D. finally decided to test the DNA evidence which was found under the victim's fingernails. That test showed that the DNA did not yield positive results to Mr. Javier. As a result of the negative results the presiding judge allowed Mr. Javier to post bail and he was placed on house arrest with an electronic ankle monitor which he was forced to wear on his person.

29. After being released on bail, Mr. Javier and his private investigator Manuel Gomez went to the 44th Precinct to ask Detective Carlos Faulkner why he didn't investigate the person he was told by Mr. Javier who committed the murder in an effort to get a lead so that they could clear his name. Detective Carlos Faulkner responded to Manuel Gomez "We didn't need to. We got the right Spic." Detective Carlos Faulkner failed to even recognize Mr. Javier although he was standing next to Manuel Gomez at the time.
30. Despite recovering at least two videos from the scene the night after the homicide took place the Bronx County District Attorney's office failed to exchange said videos during the course of the criminal action.
31. In fact, Assistant District Attorney John Morabito blatantly lied to the Court on no less than six occasions by stating that neither the Bronx County District Attorney's Office nor the N.Y.P.D. had any videos despite the Canvass Report which stated otherwise.
32. Further, Assistant District Attorney John Morabito was in constant contact with the victim's family and repeatedly told the family that he was in possession of not only the two videos from the respective auto body shops but also another

video from McDonalds. A sworn statement from one of the victim's family members, states that Assistant District Attorney John Morabito specifically states "that he has the McDonald's video and that the murder is too graphic to show them." After years of telling this to the victim's family he then tells them in 2015 that said video had been destroyed in a flood at the 44th Precinct.

33. Meanwhile, Assistant District Attorney John Morabito withheld these videos while he knew that any and all of this evidence is discoverable in a criminal matter under *Brady v. Maryland*, 373 U.S. 83.
34. Assistant District Attorney John Morabito states during a court appearance on January 16, 2014: "There is no such video...There is nothing to get. And even if you got it there is nothing there... [if there was a tape] of course its ground ball discovery. It's 240.20. If I have the recording, you have the recording end of story." The Court followed up by asking "Do the police have the tape?" Assistant District Attorney responded to the Court by saying "No."
35. On October 16, 2015 Assistant District Attorney decided it was time to turn over the two surveillance tapes which were recovered by the N.Y.P.D. on August 20, 2012. The Bronx County District Attorney's Office and the N.Y.P.D. knowingly and maliciously withheld this evidence from Mr. Javier for three years and three months (1152 days) prior to finally exchanging them, 716 of those days, Mr. Javier was forced to sit in a cell at Riker's Island and the remaining locked in his apartment for a crime he didn't commit.
36. Once Assistant District Attorney John Morabito turned over said videos, private investigator Manuel Gomez, within two weeks, was able to find six separate

witnesses, including Paula, which he was able to identify off of the video. These witnesses included no gang members and ranged from a post office worker, to a cadet in the current N.Y.P.D. class of the Police Academy who all witnessed the homicide. Each of these witnesses provided sworn written and video statements stating that Mr. Javier was innocent of this crime. Further, each one of these witnesses identified the same killer that Mr. Javier told Detective Carlos Faulkner and the Assistant District Attorney who was present on the date he was detained.

37. These six witnesses the victim's family members and Mr. Javier made nine different people who told the Bronx County District Attorney's Office and the N.Y.P.D. who committed this homicide but they all failed to investigate the actual killer.
38. After identifying these six new witnesses, Manuel Gomez brought each witness to Assistant District Attorney John Morabito's office at the end of November 2015 in an effort to both clear Mr. Javier and assist the District Attorney's Office in arresting the true perpetrators of this crime.
39. Assistant District Attorney John Morabito interviewed each of these witnesses all of which stated clearly that Mr. Javier had nothing to do with this homicide.
40. Private Investigator Manuel Gomez sat outside the office when each witness was questioned by Assistant District Attorney John Morabito. Assistant District Attorney John Morabito, when talking to Paula, berated him for stating that the detectives forced him to say that Mr. Javier committed the homicide without a care that he would be supporting perjury if this matter proceeded.

41. Mr. Javier was forced to appear in court three more times after Assistant District Attorney John Morabito was provided with six different and new witnesses who all corroborated Mr. Javier's innocence.
42. Due to substantial media pressure and the facts which all show that Mr. Javier had absolutely nothing to do with these crimes, Bronx County District Attorney Darcel Clark and her Office sent a press release on February 5, 2015 announcing that they would be dropping all charges against Enger Miguel Javier.
43. In the official press release by the District Attorney, you have to look no further than the Bronx County District Attorney's Office getting Mr. Javier's name wrong to see the flippancy in which they approached this case.
44. On February 10, 2016, all charges were officially dropped against Enger Miguel Javier. On that same day his ankle monitoring bracelet was removed.
45. As a result of this false arrest and malicious prosecution, Mr. Javier was forced to appear in court 27 times, spent 715 days in jail for a crime he did not commit, and another 560 days with an ankle monitor on his person which disallowed him the freedom and rights he deserved.
46. During his incarceration at Riker's Island, Plaintiff Enger Miguel Javier was subjected to a naked strip search, then placed on an x-ray machine naked without radiation protection, to see if he had drugs inside him; he was placed in cell blocks inhabited by various self-proclaimed gang members who repeatedly administered multiple serious beatings to Mr. Javier which was observed by correction officers who did not nothing to prevent this; on one occasion, Mr.

Javier was forced into a cell block riot which last over an hour and was heavily reported on the news. During this attack Mr. Javier was caught in the middle of rival gangs fighting and he was sent to the infirmary with serious injuries, Mr. Javier was regularly forced into violent confrontations and was assaulted on numerous occasions.

FIRST CAUSE OF ACTION
(Assault and Battery)

47. Plaintiff re-alleges all the allegations contained in Paragraphs “1” through “46” with full force and effect as though set forth at length herein.
48. On or about August 19, 2012, at about 2:00 a.m., in the vicinity of 1625 Webster Avenue in the Bronx, the defendants, including police officer Rosalind Jaime and other officers’ names currently unknown, jointly and severally in their capacity as police officers wrongfully touched, grabbed, handcuffed and seized the Plaintiff ENGER MIGUEL JAVIER, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching, nor was it privileged by law.

SECOND CAUSE OF ACTION
(False Arrest)

49. As and for a second cause of action: Plaintiff repeats and re-alleges all the allegations contained in paragraphs “1” through “48” with full force and effect as though set forth at length herein.

50. On or about August 19, 2012, at about 2:00 a.m., in the vicinity of 1625 Webster Avenue in the Bronx, the defendants, jointly and severally without any warrant, order or other legal process, and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx. The Plaintiff was thereafter held in custody over the course of approximately 24 months until he was released on bail on or about August 5, 2014 at which time he was held on house arrest until February 10, 2016. The defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law, and at all times, the Plaintiff was conscious of his confinement.

THIRD CAUSE OF ACTION
(False Imprisonment)

51. Plaintiff repeats and re-alleges all the allegations contained in paragraphs “1” through “50” with full force and effect as though set forth at length herein.
52. On or about August 19, 2012, at about 2:00 a.m., in the vicinity of 1625 Webster Avenue in the Bronx, the defendants, jointly and severally, without any valid warrant, order or legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained his liberty and then took him into custody and caused him to be incarcerated as a detainee in New York City’s Correctional Facility. The Plaintiff was thereafter held in custody for approximately 24 months until he was released on bail on or about August 5,

2014 at which time he was held on house arrest until February 10, 2016 before he was released. The defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times, Plaintiff was conscious of his confinement.

FOURTH CAUSE OF ACTION
(Malicious Prosecution)

53. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in paragraphs “1” through “52” with full force and effect as though set forth at length herein.
54. From on or about August 19, 2012, to February 10, 2016, the defendants, jointly and severally, maliciously prosecuted Plaintiff for the crimes of Murder in the second degree -P.L. 125.25(1) ; manslaughter in the first degree – P.L. 125.20; gang assault in the first degree P.L. 120.70; and criminal possession of a weapon in the fourth degree – P.L. 265.01 (2); although they had no lawful reason to believe that he in fact committed those crimes they intentionally prosecuted him for those crimes with an intent to unlawfully punish, intimidate and harass the Plaintiff, and thereby they caused Plaintiff severe damages including loss of liberty, physical injury to his person, and severe mental suffering.
55. On or about November 26, 2014, after approximately 24 months of unlawful imprisonment and an additional 18 months of being forced to wear an ankle monitor, Plaintiff Enger Miguel Javier had all charges voluntarily dismissed by the Bronx County District Attorney’s Office.

FIFTH CAUSE OF ACTION
(Against individually named police officers for constitutional violations)

56. As and for a fifth cause of action against the named police officers in their individual capacities. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in paragraphs “1” through “55” with full force and effect as though set forth at length herein.
57. Defendants, Lieutenant Jose Jacome, Detective Carlos Faulkner and David Rodriguez were at all times relevant, duly appointed and acting officers of the City of New York’s Police Department.
58. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York, and/or City of New York.
59. Plaintiff ENGER MIGUEL JAVIER is and was at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 U.S.C. Section 1983 and 42 USC Section 1988.
60. The defendant the CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
61. On or about August 19, 2012, the defendants, while effectuating the seizure of the Plaintiff ENGER MIGUEL JAVIER, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during

the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the defendants possessing probable cause to do so.

62. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution: a) freedom from assault to his person; b) freedom from battery to his person; c) freedom from illegal search and seizure; d) freedom from false arrest; e) freedom from malicious prosecution; f) freedom from the use of excessive force during the arrest process; and g) freedom from unlawful imprisonment.
63. The defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
64. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

SIXTH CAUSE OF ACTION
(Monell Claim)

65. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in paragraphs "1" through "64" with full force and effect as though set forth at length herein. This cause of action is brought pursuant to 42 U.S.C. § 1983 for violations of the Fourth and Fourteenth Amendments to the United States

Constitution. It applies to the City of New York and police officers sued in their official capacity and should be characterized as a “Monell” claim).

66. Defendants CITY OF NEW YORK, COMMISSIONER WILLIAM BRATTON IN HIS OFFICIAL CAPACITY and DETECTIVE INSPECTOR BRIAN MULLEN AS THE COMMANDING OFFICER OF THE 44TH PRECINT, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search of individuals warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
67. The City of New York was negligent and/or deliberately indifferent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
68. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking: Probable cause must be

present before an individual such as the Plaintiff herein can be arrested; Excessive force cannot be used against an individual who does not physically resist arrest; an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

69. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff, commit an assault/battery to his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.
70. To demonstrate a de facto policy of unconstitutional dimension, one might only look at the stop and frisk program initiated by former police commissioner Raymond Kelly and continued by current police commissioner William Bratton.
71. Upon information and belief, on or before August 19, 2012, the City, the N.Y.P.D. and the Police Commissioner had instituted a highly aggressive “stop and frisk” program or policy that was carried out by its police officer employees, including named defendant officers.
72. In the decade since Police Commissioner Kelly was appointed, the number of reported annual “street stops” rose from 97,000 in 2002 to 684,330 times in 2011. Upon information and belief, said rise is due to the policies, directives and procedures implemented or approved by the City, and/or the police commissioner.

73. Upon information and belief, as part of its Stop and Frisk Program, the City, the police commissioner and the N.Y.P.D., provide multiple levels of training that covered Stop and Frisk procedures. That includes, but is not limited to, a workshop on Stop and Frisk, videos about the law of reasonable suspicion, patrol guidelines, operational memorandum and ongoing training after graduating from the Police Academy.
74. Upon information and belief, this program, hereinafter referred to as “stop and frisk” disproportionately targeted minorities, males and/or youths for stop, question and/or frisks, resulting in the excessive use of force disproportionately against minorities, and violated the constitutional rights of citizens of New York City, including citizens residing within the confines of Bronx County.
75. In the matter of David Floyd et al, v. City of New York, et al, 283 FRD 153, United States District Court, Southern District of New York, Justice Scheindlin, stated that “it is indisputable that the N.Y.P.D. has an enormous stop and frisk program. There were 2.8 million documented stops between 2004 and 2009. These stops were made pursuant to a policy that is designed, implemented and monitored by the N.Y.P.D. administration. (Order Page 12).
76. Statistical evidence further shows that pursuant to the N.Y.P.D. stop and frisk policies and procedures, a great majority of civilians who were subjected to stop, question and/or frisk had not committed any crime, and that the N.Y.P.D. engaged in said actions without reasonable suspicions of criminality. Furthermore, statistics show that Blacks and Hispanic s were disproportionately targeted for stops, summons, arrests and excessive use of force.

77. Upon information and belief, it was statistically revealed that of the reported stops and frisks conducted by the N.Y.P.D. between 2004 and 2009, officers “suspicions” of criminality was wrong nearly 9 out of 10 times.
78. Upon information and belief, the City, N.Y.P.D., and the police commissioner were long aware of the racial disparity of police stop and frisks. In 2007, the N.Y.P.D. commissioned a study through the Rand Center on Quality Policing to study their stop, question and frisk patterns and practices. The study found that of the half a million persons stopped, only 11% were Caucasians, 53% Black and 29% Hispanic. Moreover, of the people that were stopped, 45% of Black and Hispanics that were stopped were frisked, while 29% of Caucasians that were stopped were frisked. Yet, when frisked, white suspects were 70% likelier that black suspects to have a weapon on them. (Rand study analysis of racial disparity in the New York Police Department Stop, Question and Frisk Practice, Page xi).
79. The Rand reported that Black and Hispanic pedestrians were stopped at a rate of 50% greater than their respective representations in the residential census. Rand Report Page xi. The Rand Report made several recommendations to the N.Y.P.D. to “improve interactions between police and pedestrians during stops and to improve the accuracy of data collected during pedestrian stops” (Rand Report, page xv). Some of the recommendations proposed included: review boroughs with the largest racial disparities in stop outcomes; record the reason(s) that force was used; monitor radio communications to make sure stop and frisk forms are being filled out; and identify, flag and investigate officers

with out of the ordinary stop patterns. Finally, the report found “some correction in training during new officer’s initial days on the street might be in order, particularly for any evaluation of Operation Impact practices”. (Rand page xvi).

80. Upon information and belief, the defendants did not adopt these suggestions, and as of August 19, 2012, still continued to stop, frisk, search and use force on minorities in a disproportionate manner and target their stop and frisk policies in predominantly non-white precincts within the City of New York.
81. Upon information and belief, police officers routinely engage in “stops” and then attempt to justify the stop and/or frisk, when in fact the basis for the stop and frisk was pretextual and/or discriminatory in nature. Upon information and belief, frisks and/or searches are conducted without justifiable reasons.
82. According to a statistical analysis conducted by Colombia University Professor Jeffrey Fagan, submitted in the Floyd case, police cited (as a reason for stop and frisk) a “suspicious bulge” in 10.4 of all stops, yet a gun was found in .15% of all stops (or 1 out of every 69 persons stopped on suspicion of concealing a weapon). Furtive movements were cited as a reason in more than 50% of all stops.
83. Professor Fagan also statistically found that “N.Y.P.D. stop and frisks are significantly more frequent for Black and Hispanic residents than they are for White residents, even when adjusting for local crime rates and the racial composition of the local population...” Floyd, at 29. He further statistically found that when stopped Blacks and Hispanic s are treated more harshly than Whites stopped on suspicion of similar criminal activity. The terms, Black,

White and Hispanic s are included within N.Y.P.D. reports and are adopted herein.

84. Analyzed data of the Stop and Frisk Program revealed in a report released by the Center for Constitutional Rights in 2012, found: 1) Analysis of the information recorded by police officers themselves in their stop and frisk reports indicates that more than 95,000 stops lacked reasonable articulable suspicion and this violated the Fourth Amendment; 2) The N.Y.P.D. continues to frequently and indiscriminately use the highly subjective and constitutionally questionable categories of “high crime area” and “furtive movements”. “High crime area” is checked off in more than 60% of all stops. A comparison of actual crime rates to the claim that a stop was in a “high crime area” reveals that this factor was cited roughly at the same rate regardless of the crime rate. “Furtive movement” was also checked in a majority of stops, 53% of them. Here too, there was no correlation between the frequency of this stated reason for a stop and actual crime rates. Both the frequency of these classifications and their complete absence of any relationship to actual crime rates suggest strongly that they are not legitimate indicators or reasonable, articulable suspicion; 3) Only 6% of stops result in arrest, an extraordinarily small number given that stops are legally supposed to be based on reasonable, articulable suspicion. The rates of seizure of weapons or contraband are minuscule-.12% of stops yield gun seizures and 1.8% contraband, and are lower than the seizure rates of random stops.

85. Since 2009, the number of stop and frisks has dramatically risen. In 2010 there were a reported 601,055 stops.
86. For the calendar year 2011, New York City precincts reported 685,724 stops. Of that total number 350,743 were categorized as stops of persons of Black descent and 223,650 were of Hispanic descent (this does not include the number of individuals who were not categorized and who may be black or Hispanic descent). Thus, 83.7% of individuals stopped were categorized as “minorities”. Of the 381,704 persons frisked in 2011, 330,683 (89.2%) were Black and Hispanic s and 27,341 (7.4%) were whites.
87. According to a 2010 census, Blacks make up 25% of the City’s population, Hispanics 29% and Whites 33%.
88. Statistical data also revealed that stop and frisk practices, when measured against the composition of the precinct population, was employed at a much greater frequency in precincts whose population was composed predominantly of minorities. In 2011, the 73rd, 23rd, 81st, 41st, and 25th precincts (Brownsville, East Harlem South, Bedford Stuyvesant East, Hunts Point and East Harlem North) stopped 29.1%, 23.9%, 21.8%, 21.7% and 20.9% of their populations respectively. Meanwhile in the Upper East Side (19th Precinct) Bensonhurst (62nd precinct), Bay Ridge (68th precinct) Totenville (123rd precinct) and Borough Park (66th precinct), which are all predominantly white precincts, residents were stopped at a rate of 2.5%, 2.4%, 2.3%, 2.1% and 2.0% of their populations. The same pattern holds true when the stops resulted in frisks. The top 5 precincts reporting the most number of frisks were minority populated

precincts, such as the 75th, 73rd, 44th, 115th, and 40th, while the least amount of frisks were conducted in white populated precincts such as the 94th, 18th, 123rd, 17th and 22nd.

89. Even in traditionally white neighborhoods, such as the 17th precinct (East Side Manhattan), Black and Hispanic residents are stopped at a disproportionate rate when compared to its white citizens who reside within the same precinct. To illustrate the point, in 2011, 71.4% of all stops made in Kipps Bay/Murray Hill, NY, were made against Blacks and Hispanics. Yet, they account for only 7.8% of the total precinct population. In Greenwich Village, where Blacks and Hispanic s comprise only 8% of the precinct, they accounted for 76.6% of all stops. (New York Civil Liberties Union Stop and Frisk 2011 Report). The same report also cites the additional precincts engaging in the same practice: 19th, 123rd, 1st, 61st, 11th, 20th, 13th and 62nd.
90. It was further reported that at least one act of force was used in 148,079 “stops” (or in 21.5% of the total number of stops in 2011), with 76,483 reported the use of force against Blacks, (21.8% of all stops of the 350,743 stops made against them in 2011). It should be noted that 51.7% of all “reported” instances of use of force by New York City Police were made against persons that the N.Y.P.D. categorized as “black”. In 2011, blacks and Hispanic s had force used against them 129,590 times as compared to white, 9,765 times.
91. To illustrate the prevalence of the use of force within the context of the “stop and frisk” program, it should be noted that the number of stops in which at least one act of force was reported as being used (148,079 times) exceeded the total

number of summons (41,215) and arrests (40,883) made from reported “stops” in New York City in 2011 (total 82,098). Thus, it was 1.8 more times likely that force was used by police during a stop and frisk encounter than it was that said encounter resulted in an arrest or a summons being issued.

92. Upon information and belief, the City, the police commissioner, and the commander of the 44th Precinct condoned the use of the stop and frisk program, or the use of force in conjunction with it, as a “means to an end” or acted with deliberate indifference to the knowledge that it was being utilized in that manner in a vast number of cases where there was no reasonable suspicion or no evidence of any criminality that would justify the use of force, or force to the degree it was used, much less the initial stop and frisk.
93. Upon information and belief, the City, the Police Commissioner acted with deliberate indifference to: statistical evidence that enforcement or application of the “Stop and Frisk” program was highly unlikely to result in an arrest, a summons or the recovery of weapons or contraband. (Weapons were recovered in 1.14% of the total number of stops reported in 2011).
94. In fact, the City, the police commissioner were deliberately indifferent to statistical evidence/reports/information/complaints and other information that they possessed that indicated that: the stop and frisk program was racially biased; the program was targeting youths; officers were using unnecessary or excessive force on carrying out this program; the program was being unconstitutionally applied; the training police officers received was inadequate, and that there was a need for proper training in the academy, for supplemental

training in service, and for in-field supervision and training in the laws of the 4th Amendment, the legal use of force, for reasonable suspicion and general police guidelines and search and seizure laws and parameters.

95. Upon information and belief, the City and the N.Y.P.D. acted with deliberate indifference that the aforementioned issues would, could and did result in the countless violations of constitutional rights of its citizenry.
96. Upon information and belief, prior to August 19, 2012, the City and the N.Y.P.D., failed to require that precinct commanders audit each officer worksheets, and failed to maintain or develop a system or methodology for identifying and tracking police officers who receive a baseline number of civilian complaints related to improper stops, improper frisks or searches, unnecessary or excessive use of force, threats, illegal entry into citizen's homes and/or discourtesy.
97. The stop and frisk program especially targeted minority youths in the 14-24 age range.
98. Although Blacks and Hispanic males between the ages of 14 and 24 age account for only 4.7% of the City's population, they accounted for 41.6% of all stops in 2011. White youths in the same age group account for 2% of the City's population and were responsible for only 3.8% of the total number of stops. In 2011, young black men between the ages of 14 and 24 were "reported" being stopped 168,128 times, which exceeded the total number of young black men in this age range who reside in New York City (158,406).

99. Minority youths were particularly vulnerable not only to stops, or stop and frisks, but more alarmingly to use of force by the N.Y.P.D. As reported in *Growing up Police in the Age of Aggressive Police Policies*, Brett G. Stoudt, Michelle Fine and Madeline Foz, in *New York Law School Review*, Volume 56, 2011/12, youths who were stopped during the two-year period of 2008-2009 were frisked 61.3% of the time, they were arrested 5.4% of the time, issued summons 5.1% of the time, and weapons were found on the youth 1.2% of the time (most of the weapons recovered were knives, guns comprised only 17% of the total weapons recovered). Yet, it was reported that force was used against the same youths 26.3% of the time, or approximately two and a half times more than the likelihood of being arrested or issued a summons. It was also found that reports of youths carrying a suspicious bulge or object, actions indicative of engaging in a violent crime, or an object in plain view 10.5%, 9.6% and 1.7% respectively, were highly unreliable and unlikely to lead to the recovery of an illicit gun. The total number reported (using the aforementioned criteria) of stop and frisks or youth were 90,756, yet the total illegal guns recovered (under any basis or criteria for reasonable suspicion) was 831 during that period, or .009%.
100. In all, 416,350 youths (381,578 or 91.6% were males and 218,260 of the total youths stopped, 52.4%, were categorized as black or African-American) were stopped in 2008-2009 and 405,898 (97.5%) of them were free of weapons or contraband. Only 10% of the total youths stopped were white youths and only 7% female from 2008 through 2009.

101. Upon information and belief, the “stop and frisk” program; targeted or was applied, in a discriminatory manner against minorities, including Hispanic s; was applied or enforced against minorities, including Hispanic s; was applied in predominately minority communities; was age biased against youths age 14-24; and was gender biased (against males) as well. A profile that Enger Miguel Javier fit, when he was arrested on the street, on August 19, 2012.
102. The racial, gender and age disparities of these statistics should not have been ignored. Defendant the City of New York and police commissioner William Bratton, ignored them. Defendants the City of New York, in so doing, were negligently indifference to the racial profiling practice of the rank and file of the police department, including the individual defendants herein.
103. Upon information and belief, the N.Y.P.D. issued a Department Operations Order in 2002 prohibiting racial profiling. Nevertheless, upon information and belief, racial profiling continued to be utilized as a policing tool of the N.Y.P.D. as of August 19, 2012. Moreover, there was no Operations Order or directive prohibiting any type of gender or age bias application of policing practices in place on that date.
104. Former police commissioner Raymond Kelly stated to the media that the stop and frisk program and the “stops” thereunder, serve as a deterrent to criminal activity, which includes the criminal possession of a weapon, therefore he pursued and endorsed it and upon information, police commissioner William Bratton continues to endorse said program and have it applied by the police officers under his command, although said program was being used to stop and

frisk citizens without reasonable suspicion and in a racial based manner, and led to the abuses such as the treatment to the Plaintiff in this matter.

105. Upon information and belief, the stop and frisk program was in effect on August 19, 2012 and was maintained, implemented and applied throughout the City of New York and all precincts therein, including the 44th Precinct by ex-commanding officer Inspector Kevin Catalina, current commanding officer Detective Inspector Brian Mullen, Lieutenant Jose Jacome, Detectives Carlos Faulkner and David Rodriguez.
106. While the aforementioned statistics were compiled for all New York City precincts, the statistics are particularly alarming for the Bronx, where the Plaintiff resided.
107. At all relevant times hereunder, the 44th precinct, under the command of Inspector Kevin Catalina, and Detective Inspector Brian Mullen, was a particularly aggressive precinct in arresting individuals.
108. The most common reason used by the N.Y.P.D. to justify stopping civilians of New York City, almost 90% of whom had committed no crime or violation, falls predominantly within the category of “furtive movements”. However, upon information and belief, the City and the Police Commissioner either failed to train officers as to what constitutes “furtive movements” or acted with deliberate indifference to the need to enhance or supplement training in the area; they acted with deliberate indifference to the unequal application of stop and frisk procedures when “furtive movements” are committed by “whites” not resulting in “stops” while the same movements when committed by minorities

resulted in “stops”; and they acted with deliberate indifference to the knowledge that “furtive movements” was not a statistically reliable marker of possession of contraband or weapons, or that a person has committed, or is about to commit a crime. In sum, “furtive movements” has been statistically proven to be unreliable to establish reasonable suspicion to justify a stop, or a stop, question and frisk.

109. The aforementioned statistical proof shows that said reasons or rationale for said stops were inaccurate, unreliable, untrue or without statistical probability of success.
110. Further evidence of the defendant’s over aggressive stop and frisk policies which targeted minority communities such as the Bronx, can be found in the Trespass Affidavit Program, formerly known as Operation Clean Halls. In *Ligon v. City of New York*, No. 12, Civ. 2274, Plaintiff brought an action alleging that the N.Y.P.D.’s trespass stops outside TAP buildings are often without reasonable suspicion, violating the 4th Amendment rights. In a written decision filed January 8, 2013, Justice Scheindlin, agreed.
111. In her decision, Justice Scheindlin stated “while it may be difficult to say where, precisely to draw the line between a constitutional and unconstitutional police encounter, such a line exists, and the N.Y.P.D. has systematically crossed it while making trespass stops outside TAP buildings in the Bronx. (*Ligon*, Page 10).
112. Although Bronx District Attorney Jeanette Rucker sent memorandums to N.Y.P.D. police commanders and police officials expressing her concerns

regarding the non-reasonable stops made by the N.Y.P.D. outside TAP buildings in the Bronx, her concerns were unheeded.

113. Dr. Fagan concluded that 63% of the “recorded trespass stops outside the Clean Halls Building in the Bronx in 2011, where no indoor behavior was observed were not based on any articulated reasonable suspicion”. Ligon at 67).
114. The arrest of the Plaintiff herein falls within the umbrella of the defendant’s over aggressive policing policies directed at minorities and at minority communities and their failure to adequately train and supervise police officers in the laws and parameters mandated by the Fourth Amendment to the constitution of the United States. The actions taken by the officers on August 19, 2012, resulting in the violation of the constitutional rights of Plaintiff Enger Miguel Javier, stems in large measure, from the policies, customs, and procedures set by the defendants, including the stop and frisk program, the inadequate training and supervision of, and by its officers, and/or the pressures exerted by the City, N.Y.P.D., Commanding Officer Kevin Catalina/ Commanding Officer Brian Mullen/ Police Commissioners Kelly and/or Bratton, to meet performance standards measured by the number of arrests made and summons issued.
115. Upon information and belief, said Stop and Frisk Program was established, maintained, supervised, continued, applied and monitored to meet arrest/summons, numbers/quotas and to establish and/or meet performance standards.

116. Upon information and belief, the N.Y.P.D., the Police Commissioner and the Commandant of the 44th Precinct established performance standards which demanded, or resulted in increased levels of stops and frisks.
117. According to the 10/17/11 Police Officer Performance Objectives Operation Order, ex-police Commissioner Kelly directed all commands that “Department managers can and must set performance goals” relating to the “issuance of summons, the stopping and questioning of suspicious individuals, and the arrests of criminals”.
118. The same Operation Order stated “uniformed members...who do not demonstrate activities... or who fail to engage in proactive activities... will be evaluated accordingly and their assignments re-assessed”.
119. In the Floyd case, Justice Scheindlin cited evidence of a quota system which included a minimum number of monthly “stops” Said evidence includes: 1) the deposition of Inspector Dwayne Montgomery, Commander of the 28th Precinct, who testified that he expected his officers to conduct a minimum of 2.3 stop and frisks per month and used the number “as a way of just gauging whether or not they were doing their job”. Floyd at 20. 2) Police Officer Adhyl Polanco of the 41st Precinct testified that that his commanding officers announced specific quotas for arrests and summons. He further testified that officers were threatened with reduced overtime or re-assigned for failure to meet quotas. 3) Police Officer Adrian Schoolcraft recorded al roll calls at the 81st Precinct where supervisors were yelling and instructing officers to conduct unlawful stops and arrest to meet higher performance numbers. This order was coming

down “the chain of command”. The statements were made by Lt. Delafuentes, Deputy Inspector Mauriello and Sgt. Stukes and cites the instructions of Chief of the Transportation Bureau of the City of New York Police Department, Michael Scagnelli. 4) Police Officer Luis Pichardo of the 28th Precinct testimony that his supervisors imposed a five summons per tour quota.

120. In a recent decision by Judge Shira Scheindlin, she ruled in a related case, *Ligon v. The City of New York*, that the N.Y.P.D. has systematically crossed the line when making trespass stops outside TAP (trespass affidavit program) building in the Bronx.
121. In reviewing the evidence in the *Ligon* case, Justice Scheindlin reached the conclusion that the “N.Y.P.D.’s inaccurate training has taught officers the following lesson: stop and question first, develop reasonable suspicion later”.
122. The aforementioned pattern of illegality demonstrates a pervasive pattern of unconstitutional behavior that permeates the City of New York Police Department, as individual police officers are pressured to “make the numbers” each month.
123. Upon information and belief, officers who issue a high number of summons, conduct a large number of “stop and frisks” and/or make or meet a minimum number of arrests, will receive a good performance rating, resulting in four career path points on an annual basis. Upon information and belief, said points will ultimately be used or applied towards a “fast track” career path for advancement.

124. Upon information and belief, in order to meet the activity quotas, N.Y.P.D.'s street level narcotic teams (SNEU) developed a system of "next up". Upon information and belief, the defendants engaged in a system or practice wherein officers would rotate arrests and who would catch them. That way all members of the "team" would meet their numbers, regardless of the training of the officer or his/her qualification and capability to be "next up" in the unfolding circumstances of the case. Upon information and belief, the performance system and lack of any meaningful evaluation resulted in shortcuts taken by N.Y.P.D. officers, constitutional violations of citizens, false arrests and illegal search and seizures. Yet the City acted with deliberate indifference to the constitutional violations that their officers were engaged in, and the complaints of its residents, citizens of the City of New York. The facts of this case further demonstrate that the N.Y.P.D. encourages illegal arrests by turning a blind eye to the facts and arresting individuals who are merely present at a crime scene.
125. The City and/or the Police Commissioner were aware that the N.Y.P.D. customs, policies and procedures, as well as their deliberate indifference to the unconstitutional applications of their customs, policies and procedures, and need for reformation of its training, oversight, analysis, supervision, monitoring, disciplining and review would lead to constitutional violations of its citizenry and did lead to said violations of the Plaintiff's constitutional rights.
- a) In the case of *Ligon v. City of New York*, Raymond W. Kelly et al, Justice Scheindlin's Opinion and Order filed 1/8/13, noted that the police training in laws of search and seizure are wrong. She cites as an example of inadequate

training a police training video (no.5) which she stated, incorrectly advised police officers what constituted a “stop” and whether force, or the threat of force must accompany the police action to constitute a “stop”. b) In Ligon, Justice Scheindlin found fault in the police training video which made incorrect distinctions between “stops” and “arrest” In her decision, she writes, “by incorrectly implying that the encounters lacking the characteristics of an arrest are in fact not even stops, the video appears to train officers that they do not need reasonable suspicion to perform the kind of stops that in an accurate reading of the law would be classified as Terry stops. In other words, this video..... trains officers that it is acceptable to perform stops... or possibly even arrests without reasonable suspicion” (pages 126,127). c) Justice Scheindlin further found that “the evidence of numerous unlawful stops at the hearing strengthens the conclusion that the N.Y.P.D.’s inaccurate training has taught officers the following lessons: stop and question first, develop reasonable suspicion later, “(Ligon at 131).

126. The defendant’s deliberate indifference is further evident by and through the lack of meaningful investigation and punishment of transgressors. Upon information and belief, the N.Y.P.D. Internal Affairs Bureau (IAB) investigations rarely lead to administrative trials, and when they do, and the charges are somehow sustained, the punishment is minimal, thereby lacking any deterrent effect.
127. Upon information and belief, officers operated with the tacit approval of their supervisors and up the ranks, with an “ends justifying the means” mentality.

This mentality includes a custom or practice of stopping, or stopping and frisking first, then establishing reasonable suspicion after the fact. Use of force was viewed as collateral damage of the stop and frisk policy established by the N.Y.P.D.

128. Police officers were rarely, if ever brought up on charges, investigated or disciplined for their over aggressive application of stop and frisk policies and practices, including pursuit into homes, use of force or discharge of their weapons.
129. Precinct commanders and supervisors were rarely, if ever, investigated, disciplined, reassigned or retained due to their own observations of misconduct, review of data or complaints from citizens for excessive use of force, 4th Amendment violations, illegal search and seizure, illegal entry into citizen's homes without a warrant, false arrests, witness intimidation, submitting false police reports and other constitutional rights violations occurring in their command, under their watch.
130. Defendant the City of New York by its police department, acted with deliberate indifference to the need to reform their customs and practices which included as stated herein, rampant examples of constitutional violations of its citizenry, thereby lending tacit approval to the unconstitutional conduct. Upon information and belief, the City, the police commissioner and/or the named defendants herein, were more interested in meeting "numbers" than they were safeguarding the constitutional rights of its citizens.

131. Other instances of racial bias or profiling: an illegal and/or improper stop and frisk program, custom, practices or policy, the appellation of and tolerance of excessive use of force; police cover-ups which include filing false charges and intimidating witnesses to said misconduct; and warrantless entry into citizens' homes are: a) On January 5, 2010 at 8 pm, Ilan Gomez, Edwardo Rivera, Jonathan Baez and Javier Tavaréz, were all in the vicinity outside of 2473 Davidson Avenue, Bronx, when an undercover officer from the 52nd precinct came up to them and asked if they knew where to buy some weed. Baez told the undercover officer to go away. A few minutes later, an unmarked police van pulled up on the street and officers ordered Baez, Gomez, Rivera and Tavaréz to get on the ground. At the same time, Luis Miranda was returning to his father's and uncle's home, police officers, without probable cause or reasonable suspicion, chased Miranda and broke down the door of the home. They pulled the door open and shot Jamie and Hector Miranda's pit bull. They grabbed Louis, Hector and Jaime Miranda and beat them up, taking Hector and Jaime into the street in their underwear. Officers slammed Gomez into the sidewalk, Tavaréz was kicked, had a knee placed in his back and assaulted on the sidewalk; Baez was punched in the face numerous times, slammed into the sidewalk numerous times, struck about the body and had his foot and ankle stepped on. The brutality was caught on video. Supervisors were present and failed to take any action. No disciplinary report was filed by any supervisors present and not one officer intervened to stop the abuse from happening, instead, the officers conspired to file false criminal charges against all

individuals which were later dismissed. Two officers were later arrested, prosecuted and upon information and belief, convicted and two sergeants suspended, once evidence of the video came out. However, upon information and belief, no investigation or disciplinary action was taken against the other police officers present.

b) On August 13, 2008 at 1.00 p.m., Robert Melendez was at his car which was parked on the corner of Lafayette Avenue and Rosedale Avenue in the Bronx, when he observed officers from the 41st Precinct forcefully arresting an unknown man. Melendez needed to leave for work, but couldn't because the officers were searching the gentleman's property on the trunk of Melendez's car. Melendez told the officers he was a bus operator and needed to leave. One of the officers became annoyed and accused Melendez of "smoking" and the officer ordered Melendez to be arrested. Melendez sat handcuffed in a police van for more than two hours, was held overnight, falsely charged with criminal possession of marijuana and unlawful possession of marijuana. Both charges were dismissed on October 21, 2008. Upon information and belief, no investigations or disciplinary action was taken against the police officers. c) On January 20, 2010, at 6 p.m., Justin Hawkins, Desmond Ingram and Akeem Huggins, each young African American male, were lawfully walking down a street, a few blocks from their homes in Staten Island, when officers from the 120th precinct approached and grabbed Hawkins and pushed him into a nearby gate. Hawkins was searched without reasonable suspicion, thrown to the ground, hit with a cell phone, handcuffed and transported to the precinct.

Ingram was pushed into a nearby gate, thrown onto the hood of a car, punched in the face, struck with police equipment, punched multiple times while handcuffed, stepped on and kicked repeatedly in the face. Scot Hawkins, Justin's father, heard that there was an incident regarding his son, so he stepped outside to obtain information from officers. He was assaulted, in that he was jumped from behind, maced, choked to the floor, kicked, kneed, struck with a baton and arrested. Ingram and Huggins were falsely charged with harassment, felony assault, resisting arrest and disorderly conduct. Justin and Scott Hawkins were falsely charged with harassment, petty larceny, possession of stolen property, felony assault, and disorderly conduct. All criminal charges were dismissed against all individuals. They all sustained physical injuries at the hands of the police. Although many officers were present during the assault, not one reported it and upon information and belief, there was no meaningful investigation undertaken by the police department into the misconduct and no officers faced any disciplinary charges. d) On February 6, 2010, at 10:30 p.m., Daniel Perez was lawfully a guest in the lobby of a building at 365 Fountain Avenue in Brooklyn when two officers from the 75th Precinct entered and proceeded to chase Perez without just cause or reasonable suspicion. As Perez exited the building, one officer tackled him to the ground, slammed his head onto the cement sidewalk and handcuffed him. When Perez was picked up, the second officer kneed him in the ribs, making Daniel fall to the ground a second time. The officers threatened Perez and called him derogatory names as he was transported to the precinct and searched. Perez was falsely charged with

criminal trespass in the third degree, which was later dismissed. He sustained multiple fractures to the face. Upon information and belief, no investigations or disciplinary action was taken against the police officers. e) On August 7, 2010 at 2:30 p.m., Lorraine Sinclair, a young African American woman, was stopped by two officers of the 41st precinct as they drove by in their patrol car. When she provided her ID, the officers claimed that Ms. Sinclair had an open warrant, got out of their vehicle, grabbed Ms. Sinclair, pushed her to the ground, slammed her face into the floor, knocked her unconscious and handcuffed her. Ms. Sinclair was falsely charged with resisting arrest, harassment and criminal mischief. All charges against her were dismissed. Sinclair suffered from deep lacerations to the back and shoulder which resulted in scarring and deep bruising. Although many officers were present during the assault, not one reported it. Upon information and belief, no investigations or disciplinary action was taken against the police officers involved.

132. The acts of police officers who violate the civil and constitutional rights of the citizens of New York routinely go unreported by fellow police officers, not investigated by their superior officers, and consequently their acts, actions, omissions go unpunished. Failure to intervene and report is the norm, not the exception. In none of the cases cited in paragraph 128 above did the police officers intervene in the face of misconduct; nor did they report the misconduct of their fellow officers or did any police officer receive any punishment for such misconduct. Consequently, the acts of police officers who use excessive force, profile citizens racially, make false arrests, make false charges, falsely detain

citizens and make false reports against them, make warrantless entry into the homes of citizens, etc., are condoned by other officers present, their supervisors, precinct commanders, and the police commissioner.

133. The City of New York and N.Y.P.D.'s tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and the emphasis to "come down hard on quality of life infractions" leads to a systemic practice and policy wherein City officials are tolerant, both outwardly and inwardly of police brutality, silence in the face of such brutality and/or illegal stops, frisks, searches, seizures and/or arrests, warrantless entry into citizen's homes and quota arrests. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and "snitches" and are isolated, ostracized and often transferred, thereby perpetuating the illegal conduct of other officers.
134. Some instances where officers were treated as outcasts for reporting misconduct and/or an arrest/summons quota system are as follows: a) the existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police Officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Scheindlin, in *David Floyd, et al v. The City of New York*, 08 Civ. 1034. b) Justice Scheindlin cited the deposition of Police Officer Adhyl Polanco of the 41st Precinct, stated that commanding officers set specific quotas for arrests and summons and for stop and frisks (UF-250's) and threatened to reduce overtime for officers who failed to perform well and to re-assign those who fail to meet quotas to less desirable posts. c) According to secretly taped recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector

and a Chief of the Division of Transportation all can be heard encouraging/demanding increased stops, summons, detentions and/or arrests.

d) Police Officer Craig Matthews of the 42nd Precinct filed a lawsuit against the N.Y.P.D. claiming the existence of a quota system and a systemic retaliation and harassment to those who did not comply. e) Retired Detective James Griffin, filed a lawsuit claiming that in the N.Y.P.D. there exists a culture wherein officers who report corruption and abuses by other officers, face harassment and a hostile work environment and this conduct was tolerated and tacitly encouraged by supervisors within the N.Y.P.D.

135. Upon information and belief, arrest quotas and summons quotas, often couched by the defendants as “performance standards” are ingrained as a part of a New York Police Officer’s job, leading to shortcuts and violations of the constitutional rights of citizens, in order to meet those so called performance levels.
136. There is a pervasive pattern, custom and de facto policy of the City of New York to allow its police officers to violate the constitutional rights of citizens, as reported in the New York Daily News expose of Sunday May 19, 2013 where the Daily News reported a litany of unconstitutional actions taken by the N.Y.P.D. teams of police officers that have been the subject of lawsuits and departmental hearings but resulted in virtually no reprimands to the offending officers, rather, one officer was promoted to a Lieutenant even when his actions were known to be unconstitutional.

137. The defendants subjected the Plaintiff to these deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
138. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

SEVENTH CAUSE OF ACTION
(Seventh Cause of Action against
ADA Morabito Individually for
Malicious Prosecution)

139. Plaintiff re-alleges and incorporates the allegations set forth in each preceding paragraph as if fully set forth herein. As and for a fifth cause of action against the named police officers in their individual capacities. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in paragraphs "1" through "138" with full force and effect as though set forth at length herein.
140. Assistant District Attorney John Morabito, maliciously and with intent or reckless disregard, maliciously prosecuted the plaintiff for the heinous crime of murder while having in his possession, evidence exculpating the plaintiff and in furtherance of his malicious purpose lied to the court in violation of Brady, and in violation of his oath as an officer of the court.
141. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

EIGHTH CAUSE OF ACTION
(Vicarious Liability of the City of
New York For State Law Violations)

142. As and for a fifth cause of action against the named police officers in their individual capacities. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in paragraphs “1” through “141” with full force and effect as though set forth at length herein.
143. The conduct of defendants Inspector Brian Mullen, Lieutenant Jose Jacome, Detective Carlos Faulkner and Detective David Rodriguez and the Bronx County District Attorney’s Office, including Assistant District Attorney John Morabito alleged herein occurred while they were on duty, and or in uniform, in and during the course and scope of their duties and functions as New York City police officers, and while they were acting as agents, officers, servants and employees of the defendant City of New York. As a result, the City of New York is liable to the Plaintiff pursuant to the State common law doctrine of respondent superior.

WHEREFORE, Plaintiff, ENGER MIGUEL JAVIER, demands judgment against the defendants, jointly and severally, in an amount of damages which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction in the amount determined upon trial of this action.

Dated: New York, New York
March 11, 2016

_____/s/
John Scola
Nwokoro & Scola, Esquires
Attorney for the Plaintiff
48 Wall Street, 11th Floor
New York, New York 10005
(212) 785-1060

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

I, the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm;

That I am the attorney of record for the Plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. I have read the within Summons and Verified Complaint and know the contents thereof to be true to your affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirmant bases his belief regarding those matters upon the contents of the file and conversation with the Plaintiff.

This verification is made by your affirmant and not by the Plaintiff for the following reason; Plaintiff resides in a different County than where your affirmant maintains an office.

Dated: New York, New York
March 11, 2016

_____/s/_____
John Scola